

Board Action Report
January 31, 2008
C. William Schmidt, Executive Director

The cases described below represent disciplinary proceedings concluded by the Kentucky Board of Medical Licensure since January 1, 2008. If you require copies of documentation related to a particular case, please refer to the Board's web site and search, using the ***Physician Profile/Verification of Physician License*** page at www.kbml.ky.gov or make a written request pursuant to Kentucky Open Records law.

Stephen J. Arnett, SA, Paintsville, KY, License # SA098
Agreed Order of Surrender entered into 01/28/08.

Margaret K. Husk, M.D., Louisville, KY, License # R1291
Agreed Order entered into on 01/30/08

Kimberly D. Jones, PA-C, Paint Lick, KY, License # PA314
Amended Agreed Order of Probation entered into 01/28/08.

Terry A. Lawson, PA-C, Whitley city, KY, License # PA378
Agreed Order of Indefinite Restriction entered into 01/02/08.

Emanuel H. Rader, M.D., Pineville, KY, License # 14827
Agreed Order of Indefinite Restriction entered into 01/14/08.

Alan D. Shultz, M.D., Mt. Sterling, KY, License # 30784
Amended Agreed Order of Indefinite Restriction entered into 01/30/08.

Michael W. Vories, M.D., Hazard, KY, License # 33216
Agreed Order of Surrender entered into 01/17/08.

Donald J. Weidler, M.D., Columbia, KY, License # 38570
Agreed Order entered into on 01/17/08

Restrictions have also been placed on the following physicians' licenses pending resolution of charges brought against these physicians:

John T. Ebert, M.D., Hopkinsville, KY, License # 31114
Temporary Order issued by Jefferson Circuit Court on 01/04/08 enjoining Dr. Ebert from the practice of medicine until further Order of the Court.

Bradford A. Quatkemeyer, M.D., Crittenden, KY, License # 32259
Complaint and Emergency Order of Restriction issued 01/30/08, effective 02/01/08.

Rudolph T. Scott, M.D., Madisonville, KY, License # 30854
Complaint and Emergency Order of Suspension issued 01/04/08, effective 01/07/08.

THE CENTRE FOR HUMANITARIAN DATA

GUIDANCE NOTE SERIES

DATA RESPONSIBILITY IN HUMANITARIAN ACTION

GUIDANCE NOTE ON DATA SECURITY IN OPERATIONAL DATA MANAGEMENT

KEY TAKEAWAYS:

- Data security is a key component of data responsibility – the safe, ethical and effective management of data for humanitarian response.
- Two common threats to data security in humanitarian action are digital surveillance and interception, and unauthorized or malicious activity.
- Humanitarian actors face many challenges related to data security, including device and application vulnerabilities, poorly secured networks, metadata exposure, physical vulnerabilities, staff capacity and error, and managing sensitive data.
- A lack of robust data security undermines the ability to deliver assistance and protection to affected people, maintain duty of care for staff, and operate effectively in complex environments.
- Data security requires both individual action and broader organizational engagement and investment. This includes adopting relevant policies, guidelines and risk-related mitigation procedures, investing in responsible data management, and promoting actions for data responsibility among staff and partners.

INTRODUCTION

Data security is a key component of data responsibility – the safe, ethical and effective management of data for humanitarian response. It entails a set of physical, technological and procedural measures that safeguard the confidentiality, integrity and availability of data, and prevent its accidental or intentional, unlawful or otherwise unauthorized loss, destruction, alteration, acquisition or disclosure.¹

Digital technologies such as mobile apps, web-based platforms, and biometric registration systems can improve humanitarian action, but they can also increase the risk of data interception, tracking and unauthorized access. Critical incidents such as the cyberattack on ICRC servers containing data related to the Red Cross and Red Crescent Movement's Restoring Family Links services² have shown that the humanitarian sector needs to prepare for and respond to major data security breaches and related threats.

A lack of robust data security undermines the ability to deliver assistance and protection to affected people, maintain duty of care for staff, and operate responsibly in complex humanitarian environments. Humanitarian organizations and staff must understand vulnerabilities related to data security and implement appropriate actions to mitigate risk. This is particularly important in conflict environments.

¹ IASC, 2021. [Operational Guidance on Data Responsibility in Humanitarian Action](#).

² ICRC, 2022. [ICRC cyber-attack: Sharing our analysis](#).

This Guidance Note presents common threats to data security and vulnerabilities in operational data management, and offers a set of recommended actions to improve data security in humanitarian settings.³

COMMON THREATS TO DATA SECURITY

Two common threats to data security in humanitarian action are digital surveillance and interception, and unauthorized or malicious activity.

- **Digital surveillance and interception:** Targeted surveillance, often enabled by telecommunications service providers subject to interception requests, may allow state law enforcement and security agencies to access/intercept communications. State and non-State actors alike may also deploy covert surveillance tools, such as masquerading as legitimate cell phone towers known as 'IMSI-catchers', to support eavesdropping on mobile phone communications. Beyond targeted surveillance, many social media platforms collect information on their users, and this data is vulnerable to the same level of exploitation as any other data. Users often have little to no say in accepting updates to the data processing policies, and are often unaware of what data is being generated and processed by the platforms they use or who has access to their data. The abundance of information that can be obtained, inferred or derived from social media data has become increasingly popular with both private and public parties for surveillance and other non-humanitarian objectives.⁴
- **Unauthorized or malicious activity:** Phishing attacks that convince individuals to click a link in communications that appear to come from trusted sources can enable remote access to a device or compromise its contents. Malware may be installed on a device remotely or from compromised links sent through messaging applications, emails and attachments. Less technical approaches, such as theft or impersonation via social engineering, also pose a serious threat to individuals and organizations.

The vulnerabilities described below increase the likelihood of these threats.

COMMON VULNERABILITIES IN OPERATIONAL DATA MANAGEMENT

While data management varies by context and organization, there are several common vulnerabilities faced by humanitarian actors. Humanitarians should assess and reduce these vulnerabilities to minimize the exposure of affected people and staff to threats and potential harm.

1. Device and application vulnerabilities

Using tools or software not approved or vetted by your organization carries a range of risks related to data security. Similarly, outdated or poorly configured software can be exploited for surveillance purposes by allowing attackers to gain control of a device through inadequate security controls.

In addition, mobile devices often have a number of applications that enable surveillance by supporting activity and content tracking, and transmitting geolocation and other metadata to third parties. This applies particularly to free applications, which are often predicated on a business model that exploits personal data.⁵ The default settings of applications may also contain inherent vulnerabilities such as defaulting message encryption to off, defaulting cloud back-ups to on or the use of conference recording functionality, which result in conversations being stored on third-party servers.

³ Operational data management entails the collection or receipt, storage, processing, analysis, sharing, use, and retention and destruction of data and information by humanitarian actors. IASC, 2021. [Operational Guidance on Data Responsibility in Humanitarian Action](#).

⁴ Privacy International and ICRC, 2018. [The Humanitarian Metadata Problem - Doing No Harm in the Digital Era](#).

⁵ Privacy International, 2020. [Privacy shouldn't be a luxury](#); also Privacy International, 2019. [Buying a smartphone on the cheap? Privacy might be the price you have to pay](#).

2. Poorly secured networks

Using public or open Wi-Fi networks (i.e., those without a password) may expose humanitarian workers to surveillance and may also lead to intrusion, such as unauthorized parties joining group chats or online meetings. This vulnerability can also arise when an organization has not properly configured its own servers, routers and services. The default settings are often overly permissive and may allow attackers to gain access to devices and networks. The aim of this type of intrusion can be to identify and profile devices and users of a network, their geographic location, the people they have communicated with, and even the content of the communication.

3. Metadata exposure

All digital activities leave digital footprints, often referred to as metadata, on devices, servers and network infrastructure. Metadata describes information about the data in question. For example, when sending an email, the metadata would include the time sent and the IP addresses of recipient and sender. Humanitarian organizations passively generate metadata through internal communications, exchanges with people affected by crises, and during programme implementation and monitoring.⁶ Access to such metadata can be as intrusive and revealing as access to any other data. It can reveal information about individuals such as their location and recent activities which can enable re-identification and targeting by malicious actors.

4. Physical vulnerabilities

There are a number of physical vulnerabilities that might lead to unauthorized access to data and information by malicious actors. For example, staff might encounter checkpoints at which they are required to hand over devices and documents. There is also a risk of physical surveillance: anyone within the vicinity of a meeting with an interlocutor could overhear discussions or deliberately listen-in to the conversation. Finally, devices are at greater risk of being lost or stolen when they are taken out of secured office environments.

5. Staff capacity and error

Poor practices and inconsistent application of data security measures can exacerbate existing vulnerabilities or create new ones. Staff might be unaware of the vulnerabilities related to data security and how to mitigate the associated risks. Resource and time constraints might also have negative effects on how staff handle data when prioritizing other areas of work. For example, staff may share sensitive data without encrypting the file (i.e., requiring a password to open it) thereby increasing the risk of inadvertently exposing the data.

6. Managing sensitive data

Sensitive data, such as data from household surveys, needs assessments and other forms of microdata, makes up an increasingly significant volume of data in the humanitarian sector. While this type of data is critical to humanitarian action, it can cause significant harm to individuals or organizations if accessed without proper authorization. Managing sensitive data exacerbates other vulnerabilities by increasing the severity of potential harm. It can also increase the likelihood of targeted attacks, including interception and unauthorized access.⁷

⁶ Privacy International and ICRC, 2018. [The Humanitarian Metadata Problem - Doing No Harm in the Digital Era](#).

⁷ Both personal and non-personal data can be sensitive. For more information, see IASC, 2021. [Operational Guidance on Data Responsibility in Humanitarian Action](#).

RECOMMENDED ACTIONS FOR DATA SECURITY

Humanitarians should take the following actions to improve data security in their work.

Understand the risks in your environment

- Identify and assess risks by conducting a Data Impact Assessment (DIA).⁸ DIAs provide an understanding of the potential consequences of a data management activity.
- Redesign or cancel an activity if the foreseeable risks of data management outweigh the intended benefits.
- Regularly consult relevant news, briefings and security reports to inform the understanding of risks in your environment.
- Adapt your approach and choices to the situation. A tool or technology might be appropriate in one context, but unsuitable in another.

Practice good password management

- Secure your devices and accounts with strong passwords that include numbers, capital and lowercase letters, and symbols with at least 16+ characters per password.
- Enable multi-factor authentication (MFA) for all accounts.
- Do not reuse the same password for multiple accounts and update passwords regularly (unless MFA is being used).
- Do not store your passwords physically (on notes) or digitally (in a file on your device) and do not share your password with others.
- Do not enable the 'Remember Me' functionality in applications and browsers.
- Use a password manager, preferably one recommended, approved or managed by your organization.
- Use a password leak monitoring service to regularly check whether your password has been compromised.
- Change your passwords on all accounts immediately if your device is lost or stolen.
- Use incognito or private browser tabs as often as possible.

Use antivirus/anti-malware software

- Make sure that you have appropriate antivirus/anti-malware software on all devices.
- Always check with an IT specialist in your office if available or otherwise with colleagues at a partner organization to select the right tool and configure it appropriately.

⁸ See the [Guidance Note on Data Impact Assessment](#) for additional information on how to conduct a DIA.

Keep software and operating systems up to date

- Check regularly that your device, software, applications, and browser plug-ins are up to date and enable automatic updates for your operating system.
- Use web browsers that receive automatic security updates.
- Avoid the use of software for which future maintenance is likely not to be available.
- Shut down devices regularly or when prompted by your system to enable updating and protect against attacks.

Avoid phishing scams and be careful what you click

- When receiving suspicious emails or other messages, always check the sender's address/contact information and only click on links or attachments from trusted senders.
- Even if the link is from a trusted sender, always copy it and use a private or incognito browser tab to open it.
- Always check that the URL corresponds to a known, reputable website by running it through a search engine to ensure the website is legitimate.
- Hover over a URL link before clicking it to see where the link is actually taking you.
- Do not reply to suspicious emails or forward them to your colleagues.
- Report any suspicious activity through the appropriate channel within your organization.

Use mobile devices responsibly

- Use separate devices for work purposes wherever possible. Keep your work devices in a secure place at all times and avoid carrying them around unnecessarily.
- Use messaging tools approved by your organization that provide end-to-end encryption.
- Minimize the use of Bluetooth connectivity and location services, and turn them off when possible.
- Use a Virtual Private Network (VPN) when working online. Consult the IT department or your colleagues for a list of approved tools.
- Always sign out of your account(s) if you are using a public/shared computer or device.
- Do not access sensitive services or information on public/shared devices unless absolutely necessary.
- Disable biometric unlock features—particularly when in transit.
- Verify that your device does not track activity or content and disable those functions where possible.

Practice data minimization

- Only collect the minimum amount of data required to achieve the objective and purposes for a given data management activity.
- Only retain sensitive data when strictly necessary and for as long as necessary to fulfill the purpose for which it is being managed and as required by applicable guidance, law and regulations.

Safeguard sensitive data

- Transfer and store data using approved tools and channels (locally on an internal server, computer or laptop, or on servers and systems operated by your organization, using end-to-end encryption).
- Password protect and/or encrypt files (Word, Excel, PDF) containing sensitive data and share document passwords through separate channels (i.e., text a password for an emailed document).
- Limit and carefully monitor the number of people with access to sensitive data.
- Define a retention and destruction schedule for all data managed by your organization and use appropriate tools for the destruction of data.
- Do not discuss sensitive information in public settings and ensure that no unauthorized persons have access to your meeting spaces, both physical and online.
- Encrypt your email messages.
- Maintain a Data Asset Registry⁹ that indicates the level of sensitivity for each data type managed by your office. Review sensitivity levels regularly as the context evolves.
- Consider developing a Data and Information Sensitivity Classification for your context, either as part of an Information Sharing Protocol¹⁰ or as a standalone document for reference.¹¹

Organizational investment in data security

Beyond the individual actions outlined above, data security requires broad, organization-level engagement. Organizations need to invest in data security measures to promote data responsibility across their offices and teams. This might include adopting relevant policies and guidelines, risk-related mitigation procedures, investing human and financial resources in data security and management, and promoting data responsibility among staff and partners.

COLLABORATORS: PRIVACY INTERNATIONAL; YALE UNIVERSITY, JACKSON INSTITUTE OF GLOBAL AFFAIRS.

The **Centre for Humanitarian Data** ('the Centre'), together with key partners, is publishing a series of guidance notes and tip sheets on Data Responsibility in Humanitarian Action over the course of 2022 and 2023. The guidance note series continues work initiated in 2019 and 2020. It also complements the **Inter-Agency Standing Committee Operational Guidance on Data Responsibility in Humanitarian Action** and the **OCHA Data Responsibility Guidelines**, which were published in February 2021 and October 2021 respectively. Through the series, the Centre aims to provide additional guidance on specific issues, processes and tools for data responsibility in practice. The guidance notes and tip sheets published in 2022-2023 have been made possible with the support of the Government of Switzerland.



Schweizerische Eidgenossenschaft
Confédération suisse
Confederazione Svizzera
Confederaziun svizra

Federal Department of Foreign Affairs FDFA

⁹ The IASC Data Asset Registry template is available [here](#).

¹⁰ The IASC Information Sharing Protocol template is available [here](#).

¹¹ See for example the [Data and Information Sensitivity Classification for Ukraine](#).

Immunization Registry Progress in Wisconsin

Note: Unless otherwise stated, the information in this fact sheet was obtained from data and information submitted by the program manager or representative from the immunization program in Wisconsin.

Immunization Coverage in Wisconsin

According to National Immunization Survey (NIS) data for July 1997 to June 1998, the percentage of children 19-35 months of age who were up-to-date with 4 doses of diphtheria, tetanus, pertussis, 3 doses of poliomyelitis, and 1 dose of measles, mumps, rubella vaccine was 78%.

Facts about the Wisconsin Immunization Registry (WIR):

WIR is very excited about the recent progress in registry development. Because of earlier setbacks caused by the original software vendor QS Inc. being absorbed by HumanSoft and then HumanSoft going out of business, there was a great deal of pessimism by both public and private providers concerning whether or not an immunization registry would become a reality. To date, WIR's new software developer has been very cooperative and has stayed on schedule. Pilot testing of the web-based system is set to begin in September 1999.

WIR is currently being developed under direction of the Immunization Program of the Division of Public Health, and in cooperation with the Division of Health Care Finance, Department of Health and Family Services. Public and private providers will have direct access to the central registry via the Internet and/or telephone modem. In addition to direct access, software is also being developed to provide stand alone provider immunization registry that will be interfaced to and synchronized with the WIR Central Registry. A standard interface for existing provider immunization registries will be developed using the CDC recommended Health Level 7 (HL7) Standard for computer exchange of immunization data. Therefore, providers will have the option of a stand alone or web-based immunization registry, or they can continue to use their existing system.

Other registry plans, accomplishments, and successes

A significant accomplishment is WIR's partnership with the Division of Health Care Finance (DHCF). The fiscal agent for the Medicaid Program is the vendor chosen to complete the project. The DHCF has a significant interest in the registry in that it will assist managed care agencies to gather data from non-affiliated providers and therefore support them in meeting immunization coverage requirements.

WIR has created an Immunization Registry Advisory Workgroup made up of representatives of public and private providers, managed care, DHCF and the Marshfield Clinic. The Workgroup gives overall direction to registry development by reviewing "draft" documents and policies and procedures.

WIR has maintained a close working relationship with the Marshfield Clinic. They have developed the Regional Early Childhood Immunization Network (RECIN) which serves their numerous clinic sites in central and northern Wisconsin and also has linkages with many public providers in their service area. An interface will exist between WIR and RECIN.

Some challenges and barriers affecting registry progress

WIR has not started the actual recruitment process to get private providers on board. However, periodic mailings have been sent out informing them of the status of registry development. In addition WIR has met with a number of major proprietary clinical services agencies to get their input and share ideas. The Immunization Program as a whole is making a major effort to strengthen the public/private partnership in regards to immunizations. The registry program has created the Wisconsin Council of Immunization Practices as an advisory group to the Program to give direction on all aspects on vaccine delivery. Immunization Registry issues are a regular part of their meeting agenda. Any assistance regarding registry promotion would be most welcome.

Current political or legislative factors affecting registry activity

It is the belief of WIR that the legislature is in support of the concept of Immunization Registry development. However, because of the delays in development, due in part to the demise of HumanSoft, they are taking a wait-and-see attitude regarding funding. WIR has sufficient funds for registry development, but long term maintenance and support is not assured.

Helpful immunization and immunization registry contacts in Wisconsin

Registry Contact Person:

Name:	Dan Hopfensperger
Address:	Wisconsin Division of Health 1414 E. Washington Avenue, Room 251A P.O. Box 309 Madison, WI 53701-0309
Phone:	608.266.1339
Fax:	608.267.9493
Email:	HOPFEDJ@dhfs.state.wi.us

Suggestions for Mrs. Thompson's involvement and support

General support of immunization issues and in particular registry development would be very helpful.

The State of our Union

Written by Mike Honda
Tuesday, 02 February 2010 08:52

On January 27th, President Obama gave the constitutionally mandated State of the Union address to our nation's Congress. In it, he presented a vision to the American people of a stronger union, one that focuses on our middle-class and adopts a bold agenda for long-term prosperity. This agenda is founded on investments in our future – a better education for our children, a clean energy economy, affordable health insurance and critical help for our small businesses.

Each week, I receive hundreds of letters with heart wrenching stories about health insurance bills bankrupting families, difficult dinner table conversations about where that next paycheck will come from and worries about how parents will pay for their children's education. The President showcased his understanding of these issues during his address, and I am confident that this Congress will support solutions to these issues quickly and effectively.

On addressing our economy, the House of Representatives has already passed a Jobs For Main Street Act that will make targeted investments for highways and transit, school renovation, hiring teachers, police, and firefighters, small business, job training and affordable housing – key drivers of economic growth that have the most bang for the buck. These investments are fully paid for by redirecting TARP funds from Wall Street to Main Street . It also includes emergency relief funding to extend unemployment benefits and help with health benefits for those who are out of work. I look forward to working with the Senate on its version of the bill so that we can send something to the President very soon. On health care, both chambers of Congress are committed to ensuring that reform lowers costs for everyday Americans and small businesses while ending the culture of 'no' in the health insurance industry. On the housing crisis, I remain committed to making sure that banks that have benefited from taxpayer assistance repay that favor to homeowners facing challenging circumstances. President Obama has highlighted charging fees to banks that received taxpayer assistance to recover that money and passing legislation that would support those that have been unfairly targeted by predatory lending practices. To this point, the House has already [moved on legislation](#) that would protect consumers and reform Wall Street.

Americans are still hurting, with double digit employment and crushing debt obligations, but I am confident that our President and this Congress understand the work that needs to be done to turn things around and that we have begun to act. In this regard, I assure you that I will do everything in my power to ensure that any legislation passed in the House is done with for the sole purpose of putting Americans back to work and ensuring that the American Dream never dies.

November 30, 2007 - Congressman Murtha Announces December Outreach

(Washington D.C.)- Congressman John P. Murtha today announced his outreach schedule for December in Armstrong, Fayette, Greene, Indiana, Washington and Westmoreland counties:

Armstrong County:

Kittanning
- 450
East Market Street,
Courthouse Annex, 9:00 a.m. to 12:00 p.m., Thursdays December 6,

December
13 and December 20

Fayette County:

Belle Vernon - Borough
Building,
10
Main St, 9:00 to 12:00
p.m. December 12

Brownsville - Borough
Building,
Second & High St.,
9:00 to 12:00 p.m. December 5 and December 19

Connellsville

- City Hall, 110
N. Arch St., 1:00 to
4:00 p.m. December 12

Salt Lick
Township
Building, 147 Municipal Rd,
Melcroft, 9:00 to 12:00 p.m. December 12

Uniontown
- 20 N. Gallatin Ave.,
9:00 to 4:00 p.m. December 3, December 7, December 10, December 14,

December
17, December 20 and December 21

Greene County:

Carmichaels
- Carmichaels
Borough
Building,
100
West George Street
(*New Address*), from 9:30 to 3:00 p.m. December 13

Waynesburg
- Greene County Office Building, 93 E. High St., Room 303, from 9:30 to 3:00
p.m., Tuesdays

December
4, December 11 and December 18

Indiana County:

Indiana -
827
Water Street, 1:00 to
4:00 p.m., Thursdays December 6, December 13 and December 20

Washington County:

Donora -
Public Library, 510
Meldon Ave., 1:00 to
4:00 p.m. December 12

Centerville
- Borough Building,
100 East End Rd.,
1:00 to 3:00 p.m. December 5 and December 19

Washington - 56 W. Maiden St.
(across the street from City Hall), 9:00 to 4:00 p.m., December 5 and December
19

Westmoreland County:

Latrobe -
Borough
Building,
901
Jefferson St., 8:00 to
12:00 p.m. Mondays December 3, December 10 and December
17

Lower
Burrell - City
Hall
Building,
2800
Bethel Street, 9:00 to
4:00 p.m., Tuesdays December 4, December 11 and December 18

Constituents can consult with a
staff member about any problem with a federal agency or program. For
immediate assistance, please call Congressman Murtha's toll-free number,
1-800-289-2642.

(####)